Chapter Eighteen

Death of a Priest

In England, between 1154 and 1170, Henry II establishes English criminal law, and his archbishop is murdered

In England, Henry II was ruling over his barons and his people with little opposition. But the English church was a more difficult subject.

During the Anarchy, the church had gradually taken on more and more responsibility for administering justice. Like secular courts, church courts had judges, scribes, registrars, and summoners—all church officials. They had been in operation since 1072, when William the Conqueror had given the English church the right to deal internally with all matters involving either clergymen or violations of church law: in his own words, "any matter which concerns the rule of souls." Cases tried in secular courts could be appealed to the king; if you were convicted in a church court, your last resort was the pope. The ultimate penalty in the church court was excommunication; in the secular court, death.[1]

"The rule of souls" was an ambiguous phrase, and by the end of the Anarchy, the church had drawn all cases involving oath breaking and sexual morality into its sphere, as well as matters of actual church administration. Even more drastic: *all* clergy accused of misdeeds—no matter what their crimes—were being tried in church courts, and in church courts alone. Rape and murder, punishable by the king's courts with death, could be punished in